

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 839

Introduced by Rountree, 3.

Read first time January 08, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Municipal Density and Missing Middle
- 2 Housing Act; to amend section 19-5504, Revised Statutes Cumulative
- 3 Supplement, 2024; to change reporting requirements; and to repeal
- 4 the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 19-5504, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 19-5504 (1) On or before July 1, 2021, and by each July 1 every two
4 years thereafter, each city shall electronically submit a report to the
5 Urban Affairs Committee of the Legislature detailing its efforts to
6 address the availability of and incentives for affordable housing through
7 its zoning codes, ordinances, and regulations. Such report shall include,
8 but not be limited to:

9 (a) An overview of the city's current residential zoning
10 requirements;

11 (b) The percentage of areas within the corporate limits of the city
12 zoned for residential use which permit the construction of multifamily
13 housing and middle housing, including whether such areas are zoned
14 specifically for residential use or generally allow residential use, and
15 whether such construction is permitted with or without any additional
16 permit requirements;

17 (c) A breakdown of new residential construction within the corporate
18 limits of the city over the previous five years, including the percentage
19 of such construction that was single-family housing, multifamily housing,
20 and middle housing;

21 (d) A breakdown of residential units annexed by the city over the
22 previous five years, including the percentage of such units that were
23 single-family housing, multifamily housing, and middle housing;

24 (e) An estimate of the per-unit cost of housing within the corporate
25 limits of the city;

26 (f) Whether such zoning codes, ordinances, and regulations provide
27 for density bonuses or other concessions or incentives which encourage
28 residential density, and the frequency with which such bonuses,
29 concessions, or incentives are utilized;

30 (g) Whether such zoning codes, ordinances, and regulations allow the
31 construction of accessory dwelling units;

1 (h) What incentives the city applies to encourage the development of
2 affordable housing, including both direct incentives and regulatory
3 relief;

4 (i) The percentage of areas within the corporate limits of the city
5 zoned for residential use which have been declared substandard and
6 blighted areas under the Community Development Law;

7 (j) The percentage of areas within the corporate limits of the city
8 zoned for residential use which have been declared extremely blighted
9 areas under the Community Development Law;

10 (k) A demographic analysis of the city with trends and estimates of
11 the housing need classified by housing type and price range; and

12 (l) The number of multifamily housing units constructed within the
13 corporate limits of the city and issued an initial certificate of
14 occupancy since March 13, 1991, and the number of such units considered
15 covered multifamily dwellings that were designed and constructed in
16 accordance with the accessibility requirements of the federal Fair
17 Housing Act, 42 U.S.C. 3601 et seq. For purposes of this subdivision,
18 covered multifamily dwelling has the same meaning as in 42 U.S.C. 3604;
19 and

20 (m) (1) Efforts to adopt an affordable housing action plan as
21 required under section 19-5505 or efforts to implement an affordable
22 housing action plan after such plan is adopted.

23 (2) The Urban Affairs Committee of the Legislature may require any
24 city to present its report to the committee at a public hearing.

25 **Sec. 2.** Original section 19-5504, Revised Statutes Cumulative
26 Supplement, 2024, is repealed.